RESOLUTION NO. 2026-071
RESOLUTION OF THE MARIN COUNTY BOARD OF SUPERVISORS CALLING FOR A SPECIAL ELECTION TO BE CONSOLIDATED WITH THE STATEWIDE GENERAL ELECTION ON TUESDAY, NOVEMBER 3, 2026 TO IMPOSE A SPECIAL TAX UPON PARCELS WITHIN THE UPPER BAY PERMANENT ROAD DIVISION FOR THE PURPOSE OF FINANCING IMPROVEMENTS AND ONGOING MAINTENANCE OF ROADWAYS WITHIN THE DIVISION; REQUIRING ESTIMATES PLANS AND SPECIFICATIONS TO BE PREPARED; ADOPTING INTENDED BALLOT LANGUAGE; AUTHORIZING THE COUNTY REGISTRAR OF VOTERS TO TAKE APPROPRIATE ACTION; AND DIRECTING THE COUNTY TAX COLLECTOR TO LEVY THE TAX IF APPROVED

WHEREAS, on June 23, 2026, the Upper Bay Permanent Road Division (Division) was formed pursuant to Streets and Highway Code Sections 1160-1197, pursuant to a petition signed by a majority of property owners within the Upper Bay Permanent Road Division; and

WHEREAS, the petition recommends certain improvements and maintenance be performed on the roadways within the Division and that an election be held on November 3, 2026 on a special tax to fund the work; and

WHEREAS, the petition proposes to levy a special tax of $4,350 per improved parcel, per year, and $2,175 per unimproved parcel, per year, for 10 years, resulting in a total tax revenue of approximately $456,750; and thereafter $455 per parcel, per year, for each fiscal year until repealed, to fund ongoing maintenance, with a provision for an annual increase effective July 1 each year in accordance with the change in the Consumer Price Index for All Urban Consumers San Francisco-Oakland-Hayward, for the previous calendar year; and

WHEREAS, pursuant to Streets and Highway Code Section 1173, when a division petitions for a special tax, the Board shall immediately order the election to determine whether such tax will be levied.

NOW THEREFORE BE IT RESOLVED by the Board of Supervisors that:

1. A Special Election be called and consolidated with the Statewide General Election of Tuesday November 3, 2026 to impose a special tax upon parcels within the Upper Bay Permanent Road Division for the purpose of financing improvements and ongoing maintenance of roadways with the division. The County Registrar of voters is authorized to take appropriate action in furtherance of the Special Election.

2. Should the measure pass by 2/3 of the votes cast by the registered voters in the Division, the special tax will be levied on the parcels in the Division, as set forth in Exhibits A and B, beginning in the first year following approval. This tax shall be collected by the Marin County Tax Collector by way of the annual secured tax rolls, in two installments each fiscal year, the first due November 1 and the second due February 1.

3. The Clerk of the Board shall post the Notice of Election, attached hereto as Exhibit C, calling for a special election on November 3, 2026, and such notice to be posted and

published in the manner provided California Streets and Highways Code Section 1174.

4. Estimates, plans and specifications shall be prepared for the work described in the petition.

5. The expenses of organizing the Division, conducting this election, and providing any necessary engineering services shall be recovered by the County from the funds of the Division.

6. Should the measure pass by 2/3 of the votes cast by registered voters in the Division, the Division may borrow from the County against the projected tax proceeds to fund the maintenance work in advance. Loan and financing costs shall be paid for by Division tax proceeds.

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7. Should the measure pass by 2/3 of the votes cast by the registered voters in the Division, the special tax on parcels within the Division shall be $4,350 per improved parcel per year and $2,175 per unimproved parcel per year for 10 years, beginning in fiscal year 2027-28, resulting in a total tax revenue of approximately $456,750 in the first year; thereafter, each lot shall be taxed at $455 per year. Following the 10th year, the special tax shall be increased effective July 1 every year in accordance with the change in the Consumer Price Index for All Urban Consumers San Francisco—Oakland—Hayward for the previous calendar year.

8. The measure submitted to the voters shall be in the following form:

MEASURE SUBMITTED TO VOTE OF VOTERS OF UPPER BAY PERMANENT ROAD DIVISION FOR APPROVAL OF SPECIAL TAX AND LOAN AND ITS REPAYMENT

Shall the measure be adopted authorizing a special tax on parcels within the Division of $4,350 per improved parcel per year and $2,175 per unimproved parcel per year for 10 years, beginning in fiscal year 2027-28, resulting in a total assessment of approximately $456,750 each year, to fun improvements; thereafter, beginning in fiscal year 2037-2038, the special tax shall be $455 per year for each year until repealed, to fund ongoing maintenance, with a provision for an annual adjustment effective July 1 every year in accordance with the change in the Consumer Price Index for All Urban Consumers San Francisco—Oakland—Hayward for the previous calendar year.

PASSED AND ADOPTED at a regular meeting of the Board of Supervisors of the County of Marin held on this 14th day of July 2026, by the following vote:

AYES: SUPERVISORS Sackett, Colbert, Moulton-Peters, Rodoni, Lucan

NOES: NONE

ABSENT: NONE

PRESIDENT, BOARD OF SUPERVISORS

ATTEST:

DEPUTY CLERK